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NEW CRIMINAL LAWS

CODES OF CONTENTION

By Kaushik Deka

On July 1, India saw a momentous event in the history of its criminal justice system. After governing the country for over a century and a half, the Indian Penal Code (IPC) of 1860, the Criminal Procedure Code (CrPC) of 1882 vintage—amended 1973—and the Indian Evidence Act of 1872 faded into the past tense. They stand replaced by the Bharatiya Nyaya Sanhita (BNS), the Bharatiya Nagarik Suraksha Sanhita (BNSS) and the Bharatiya Sakshya Adhiniyam (BSA) respectively, all three carrying a slew of innovations. Passed in Parliament last December amid strong protests from Opposition parties, these three laws arrive as an essay in wholesale legal reform, though not without a disputatious air surrounding their birth.

Union home minister Amit Shah claims that these new laws will ensure *nyay* (justice), unlike the British-era laws that prioritised *dand* (punishments). Incorporating provisions like zero FIR, online registration of police complaints, electronic summonses and mandatory videography of crime scenes for all serious offences, the government has positioned these laws as victim-centric. A significant highlight is the dedicated sections addressing crimes against women, featuring enhanced severity of punishments.

While recognising the necessity for long overdue legal reform, critics have expressed unease over several contentious aspects of these laws, such as expanded police powers, vaguely defined offences like terrorism and potential impacts on civil liberties. Concerns have also been raised about the scope and duration of the consultation process for framing these laws, which took place during the Covid-19 pandemic. The rapid passage of these laws in Parliament, despite protests from the Opposi-

Illustration by NILANJAN DAS